

SOLVED PRACTICE WORKBOOK

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

ARTICLE 244: TWO CONSTITUTIONAL MODELS

Protection and territorial self-government for Scheduled and tribal areas

SUBSTANTIVE EQUALITY

land + culture + voice + accountable development

FIFTH SCHEDULE

Article	244(1)
Territory	Notified Scheduled Areas in 10 States
Core body	Tribes Advisory Council - advisory
Law route	Governor adapts laws / makes regulations
Assent	President for Governor regulations
Local layer	PESA Gram Sabha + Panchayats

SIXTH SCHEDULE

Article	244(2)
Territory	AMTM tribal areas
Core body	Elected District / Regional Councils
Power	Specified laws, services, courts and taxes
Assent	Governor for council laws
Limit	Autonomous; not sovereign or State-equivalent

PESA applies to Fifth Schedule areas; FRA complements rights and conservation.

Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

Polity 26 - Scheduled and Tribal Areas - PYQ, practice and solved workbook

Verified routed Prelims PYQs

PYQ 1 - UPSC Prelims 2019, Q50

Verified from the locally held official paper:

Under which Schedule of the Constitution of India can the transfer of tribal land to private parties for mining be declared null and void? A. Third Schedule B. Fifth Schedule C. Ninth Schedule D. Twelfth Schedule

Key status: The audited local ledger records that an official key is unavailable locally. No answer letter is presented as official.

Tested concept: [FACT] Fifth Schedule paragraph 5 permits gubernatorial regulations restricting tribal land transfers in Scheduled Areas, subject to TAC consultation where one exists and presidential assent. [FACT] *Samatha* applied the Andhra Pradesh Scheduled Areas Land Transfer Regulation to invalidate the impugned mining leases in its specific legal setting.

Qualification: [LIMIT] The legal result depends on the applicable Fifth Schedule regulation/State law and facts; the case is not a free-standing nationwide ban detached from those instruments.

PYQ 2 - UPSC Prelims 2022, Q73

Verified routed demand: consequences of bringing an area under the Fifth Schedule.

Wording control: The routing ledger preserves the neutral demand but the exact official-paper wording and official key are not available in the verified local corpus used for this export. They are not reconstructed.

Concept model

Consequence	Governing rule
legal status	President declares a Scheduled Area
ordinary administration	State executive power continues
supervision	Governor reports; Union may give directions
advisory institution	TAC in the State
protective adaptation	Governor may adapt laws and make land/money-lending regulations
self-government layer	PESA applies through State law

Key status: No option is inferred. The concept lesson is that scheduling produces protective administration; it does not create a UT, a Sixth Schedule ADC or automatic Union administration.

PYQ 3 - UPSC Prelims 2023, Q39

Verified from the locally held official paper:

With reference to "Scheduled Areas" in India, consider the following statements: 1. Within a State, the notification of an area as Scheduled Area takes place through an Order of the President. 2. The largest administrative unit forming the Scheduled Area is the District and the lowest is the cluster of villages in the Block. 3. The Chief Ministers of the concerned States are required to submit annual reports to the Union Home Ministry on the administration of Scheduled Areas in the States. How many of the above statements are correct? A. Only one B. Only two C. All three D. None

Key status: The official key is unavailable in the audited local corpus; no option is inferred.

Statement audit without key inference

- [FACT] Statement 1 tracks Fifth Schedule paragraph 6: Scheduled Area status is created through a Presidential Order.
- [FACT] The Ministry's official administrative criteria speak of a viable unit such as a district, block or taluk and compact territory. [LIMIT] Because the official key is unavailable, this package does not convert that guidance into a declared answer on statement 2.
- [FACT] Paragraph 3 assigns the annual/required report to the **Governor** and the recipient is the **President**, not the Chief Minister and Union Home Ministry as stated.

PYQ 4 - UPSC Prelims 2024, Q84

Verified from the locally held official paper:

Consider the following statements: 1. It is the Governor of the State who recognizes and declares any community of that State as a Scheduled Tribe. 2. A community declared as a Scheduled Tribe in a State need not be so in another State. Which of the statements given above is/are correct? A. 1 only B. 2 only C. Both 1 and 2 D. Neither 1 nor 2

Official Set-A key: B.

Explanation: [FACT] Article 342 authorises the President to specify STs for a State/UT by public notification, after the constitutionally required consultation, and Parliament may later include/exclude by law. [FACT] ST status is State/UT-specific, so the same community need not have the same status everywhere.

PYQ 5 - UPSC Prelims 2025, Q56

Verified from the locally held official paper:

With reference to the Constitution of India, if an area in a State is declared as Scheduled Area under the Fifth Schedule: I. the State Government loses its executive power in such areas and a local body assumes total administration; II. the Union Government can take over the total administration of such areas under certain circumstances on the recommendations of the Governor. Which of the statements given above is/are correct? A. I only B. II only C. Both I and II D. Neither I nor II

Official Set-A key: D.

Explanation: [FACT] State executive power continues. [FACT] The Governor reports to the President and Union executive power extends to directions on administration. [LIMIT] Neither proposition in the stem accurately describes a local-body or Union "total administration" takeover.

PYQ 6 - UPSC Prelims 2026, Q57

Verified from the locally held official paper:

Consider the following statements about the provisions pertaining to the Scheduled Castes and the Scheduled Tribes in India: 1. Provisions regarding the administration of the Tribal Areas in Assam, Meghalaya, Tripura and Mizoram are given in the Fifth Schedule. 2. Some tribes of India are entitled to exemption from paying Income Tax on certain incomes. 3. The Constitution provides for reservation of seats in Panchayats for women belonging to the Scheduled Castes and Scheduled Tribes. Which conclusion based on the statements is correct? A. There are two correct statements, including statement 2. B. There are two correct statements, statements 1 and 3. C. There is only one correct statement. D. All three statements are correct.

Key status: A provisional Set-A key is held locally, but the routing ledger deliberately records no answer letter and no answer is inferred here.

Concept audit

- [FACT] Statement 1 reverses the Schedules: the four named States are the Sixth Schedule field.
- [FACT] Income-tax Act section 10(26) contains a conditional statutory exemption for specified income of eligible ST members residing in specified areas; it is not a blanket tribal exemption.
- [FACT] Article 243D includes SC/ST reservation in Panchayats and requires not less than one-third of reserved SC/ST seats to be reserved for women belonging to those categories.

- [LIMIT] Because the locally held key is provisional and no letter is recorded in the ledger, this package does not declare an answer option.

PYQ coverage control

- [FACT] The audited 2018-2026 routing ledgers identify six direct objective demands for this owner.
- [LIMIT] Exact wording is reproduced only where verified against a locally held official paper. Official answer letters are stated only for the locally held final 2024 and 2025 Set-A keys.

Original MCQ loop - strict continuous A -> B -> C -> D rotation

OM1. Article 244 mapping

Which pairing is correct?

A. Article 244(1)-Fifth Schedule; Article 244(2)-Sixth Schedule. B. Article 244(1)-Sixth Schedule; Article 244(2)-Fifth Schedule. C. Article 244A-Fifth Schedule declaration by President. D. Article 339-Sixth Schedule council composition.

Answer: A.

Explanation: [FACT] Article 244 is the gateway that applies the two Schedules to their different territorial fields.

OM2. Fifth Schedule States

Which statement is correct as on 19 August 2026?

A. Every State with an ST population has a notified Scheduled Area. B. Official Central material identifies notified Fifth Schedule areas in 10 States. C. All territory in those 10 States is scheduled. D. Assam is one of the 10 Fifth Schedule States.

Answer: B.

Explanation: [CURRENT] Ten States have notified areas; notification is territorial, not State-wide.

OM3. Declaration authority

A legally effective Scheduled Area status is created by:

A. a TAC resolution. B. a State Cabinet decision. C. a Presidential Order under the Fifth Schedule. D. a Gram Sabha resolution under PESA.

Answer: C.

Explanation: [FACT] Administrative criteria guide identification, but the Presidential Order creates status.

OM4. Executive power

Which is the most accurate consequence of Fifth Schedule notification?

A. The area becomes a Union Territory. B. An ADC assumes total administration. C. The State loses all executive power. D. State executive power continues, subject to Governor reporting and Union directions.

Answer: D.

Explanation: [FACT] Paragraph 3 creates supervision, not automatic substitution of government.

OM5. TAC composition

Which statement reflects the Fifth Schedule?

A. TAC has not more than 20 members, with the specified ST-legislator representation rule. B. TAC has 30 elected members and four nominees. C. TAC is chaired constitutionally by the President. D. TAC exists only in Sixth Schedule States.

Answer: A.

Explanation: [FACT] The 30-member pattern belongs to the ordinary Sixth Schedule council ceiling.

OM6. TAC function

The primary constitutional duty of the TAC is to:

A. levy land revenue. B. advise on ST welfare and advancement matters referred by the Governor. C. assent to State legislation. D. decide forest-right claims.

Answer: B.

Explanation: [FACT] TAC advice is not legislation, adjudication or executive approval.

OM7. Fifth Schedule regulations

A Governor-made regulation under paragraph 5 takes effect after:

A. TAC approval alone. B. State Assembly ratification. C. presidential assent. D. Supreme Court certification.

Answer: C.

Explanation: [FACT] TAC consultation where it exists precedes the regulation; presidential assent gives effect.

OM8. Law-application direction

Which power can expressly operate retrospectively?

A. Article 342 ST notification only. B. TAC advice. C. Gram Sabha beneficiary selection. D. Governor's direction adapting/non-applying a law in a Scheduled Area.

Answer: D.

Explanation: [FACT] Fifth Schedule paragraph 5(1) permits retrospective effect.

OM9. Article 339

Article 339(2) principally concerns:

A. Union directions on State schemes essential for ST welfare. B. creation of an autonomous State within Assam. C. Governor assent to ADC laws. D. recognition of ST communities.

Answer: A.

Explanation: [FACT] It is a welfare-scheme direction power, distinct from Article 244A.

OM10. Article 275(1)

Which provision supports grants for ST welfare and raising Scheduled-Area administration?

A. Article 243D. B. Article 275(1). C. Article 300A. D. Article 371A.

Answer: B.

Explanation: [FACT] Article 275(1) is the constitutional fiscal route.

OM11. Fifth Schedule evaluation

Which conclusion is best?

A. Constitutional powers guarantee outcomes without institutions. B. TAC is stronger than a legislature. C. effectiveness depends on timely power use, participation, records and capacity. D. Union directions remove the need for State administration.

Answer: C.

Explanation: [ANALYSIS] The framework's performance is multiplicative, not self-executing.

OM12. Territorial trap

Which statement is false?

A. Presidential Orders define Scheduled Area coverage. B. Some districts may be only partly covered. C. ST population alone does not create status. D. Once a State is listed, its entire territory is a Scheduled Area.

Answer: D.

Explanation: [FACT] Legal status attaches only to notified territory.

OM13. Sixth Schedule States

Which is the complete Sixth Schedule set?

A. Assam, Meghalaya, Tripura and Mizoram. B. Assam, Nagaland, Manipur and Mizoram. C. All eight North-Eastern States. D. Meghalaya, Tripura, Mizoram and Arunachal Pradesh.

Answer: A.

Explanation: [FACT] "A-M-T-M" is the exact constitutional set.

OM14. Autonomous regions

An autonomous region may be created where:

A. a Scheduled Area becomes a UT. B. different Scheduled Tribes inhabit parts of an autonomous district. C. a TAC demands taxation power. D. Parliament declares a new State.

Answer: B.

Explanation: [FACT] The Governor may divide such areas into autonomous regions.

OM15. Ordinary council composition

Which statement is correct?

A. Every District Council has exactly 30 elected members. B. All members are nominated by the Governor. C. The ordinary ceiling is 30, with not more than four Governor-nominated members. D. Elected members have no fixed term.

Answer: C.

Explanation: [FACT] Special amendments, including BTC's design, create exceptions.

OM16. Council law

A District/Regional Council law under paragraph 3 ordinarily takes effect after:

A. President's assent. B. TAC consultation. C. State Cabinet approval alone. D. Governor's assent.

Answer: D.

Explanation: [FACT] This is the crucial Fifth-versus-Sixth assent reversal.

OM17. Council legislative field

Which is a paragraph 3 subject?

A. regulation of shifting cultivation. B. defence. C. currency. D. citizenship.

Answer: A.

Explanation: [FACT] Land, non-reserved forests, local institutions and customary matters are core fields.

OM18. Forest competence

Which forest category is excluded from the ordinary paragraph 3 forest field?

A. community forest resource. B. reserved forest. C. protected forest. D. village forest.

Answer: B.

Explanation: [FACT] The omission of "reserved" is a standard close-option discriminator.

OM19. Council courts

The safest description of Sixth Schedule judicial power is:

A. ADCs replace all High Courts. B. ADCs try every criminal offence. C. village/council courts handle specified matters within the tribal-party jurisdictional boundary. D. judicial power exists only under PESA.

Answer: C.

Explanation: [FACT] Jurisdiction is bounded by parties, territory, subject and rules.

OM20. Fiscal autonomy

Which is within the Sixth Schedule revenue basket?

A. customs duty. B. corporation tax. C. GST on inter-State supply. D. specified taxes on professions, animals/vehicles, markets and local services.

Answer: D.

Explanation: [FACT] Council fiscal power is constitutionally specified, not plenary.

OM21. Mineral royalties

Paragraph 9 contemplates:

A. an agreed share of mineral royalties for the District Council. B. exclusive council ownership of all minerals. C. automatic cancellation of every State lease. D. no State role in minerals.

Answer: A.

Explanation: [FACT] Revenue sharing is not mineral sovereignty.

OM22. Bodoland exception

Which statement is accurate?

A. BTC follows an invariable 26 elected plus four nominated design. B. BTC has a special 46-member design: 40 elected and six nominated. C. BTC is an autonomous State under Article 244A. D. BTC is a Fifth Schedule TAC.

Answer: B.

Explanation: [FACT] The exception warns against universalising the ordinary paragraph 2 model.

OM23. Assam asymmetry

Paragraphs 3A and 3B illustrate:

A. automatic Statehood. B. abolition of Governor assent. C. additional subject allocations for specified Assam councils. D. extension of PESA to BTC.

Answer: C.

Explanation: [FACT] Sixth Schedule autonomy is internally asymmetric.

OM24. Article 244A

Article 244A enables Parliament to:

A. declare all Assam a Scheduled Area. B. create a PESA State. C. notify an ST list. D. create an autonomous State within Assam with a legislature/CoM.

Answer: D.

Explanation: [FACT] It is deeper than an ADC but remains an enabling constitutional route.

OM25. PESA reach

PESA applies to:

A. Fifth Schedule Scheduled Areas. B. all Sixth Schedule tribal areas. C. every rural area in India. D. only forest land.

Answer: A.

Explanation: [FACT] Article 243M exclusion is modified by PESA for Fifth Schedule areas.

OM26. Acquisition and R&R

PESA section 4 requires, before land acquisition and resettlement/rehabilitation:

A. universal Gram Sabha consent. B. consultation with the Gram Sabha or Panchayat at the appropriate level. C. TAC legislation. D. President's assent.

Answer: B.

Explanation: [FACT] Consultation must not be inflated into the different verb "consent".

OM27. Minor minerals

Which PESA formulation is correct?

A. every major-mineral project needs TAC approval. B. every mine needs President's assent. C. specified minor-mineral licences/leases require mandatory prior recommendation. D. Gram Sabha owns all subsoil minerals.

Answer: C.

Explanation: [FACT] Section 4(k)-(l) uses recommendation for specified minor-mineral decisions.

OM28. Section 4(m)

Which basket best reflects PESA?

A. defence, foreign affairs and currency. B. High Court appointments and police command. C. Statehood, citizenship and emergency. D. minor forest produce, markets, money-lending, intoxicants and land-restoration powers.

Answer: D.

Explanation: [FACT] State law must specifically endow the Gram Sabha/Panchayats at the appropriate level.

OM29. FRA claims

The statutory claims process begins with:

A. the Gram Sabha. B. the Governor. C. the District Council. D. the President.

Answer: A.

Explanation: [FACT] FRA section 6 makes the Gram Sabha the initiating authority.

OM30. CFR right

Community Forest Resource rights include the right to:

A. own every mineral. B. protect, regenerate, conserve or manage the community forest resource. C. abolish reserved forests. D. bypass the FRA committee process.

Answer: B.

Explanation: [FACT] CFR is a management/conservation right distinct from an individual cultivation right.

OM31. Niyamgiri holding

Which statement is most accurate?

A. The Court granted every Gram Sabha a nationwide mining veto. B. The Court transferred mineral ownership to the Dongria Kondh. C. Gram Sabhas determined FRA-linked claims; MoEF retained final Stage-II decision in light of them. D. The case concerned only ordinary EIA public hearings.

Answer: C.

Explanation: [FACT] This preserves both community-right determination and statutory clearance authority.

OM32. Samatha limit

The safest use of *Samatha* is:

A. all private mining in India is void. B. Fifth Schedule itself nationalised minerals. C. the ruling has no tribal-land relevance. D. cite its Andhra Pradesh regulation-based holding and expressly qualify nationwide extension.

Answer: D.

Explanation: [LIMIT] Legal setting and later scope treatment are indispensable.

OM33. Article 371 distinction

Which statement is correct?

A. Article 371 provisions are distinct State-specific arrangements, not synonyms for the Sixth Schedule. B. Article 371 automatically creates ADCs. C. Article 371 applies PESA to Mizoram. D. Article 371 eliminates Part III.

Answer: A.

Explanation: [FACT] Examples include Article 371A and 371G, each with its own text.

OM34. Ordinary Panchayats

Article 243M means that:

A. Part IX automatically applies unchanged to every Scheduled/tribal area. B. Scheduled Areas and tribal areas are excluded from automatic Part IX application, with PESA extending it to Fifth Schedule areas. C. Panchayats can never exist in the North-East. D. ADCs are ordinary Zila Parishads.

Answer: B.

Explanation: [FACT] PESA is the Fifth Schedule modification route.

OM35. Current PESA rule status

Which dated statement is supported by the official MoPR listing on 19 August 2026?

A. Odisha is the only State with rules. B. All ten States have identical rules. C. Nine State rule regimes are listed, including Jharkhand 2025; Odisha is not separately listed. D. PESA has been repealed.

Answer: C.

Explanation: [CURRENT] Notification status is not implementation completeness.

OM36. Reform principle

Which reform best respects the constitutional design?

A. replace Gram Sabhas with dashboards. B. treat TAC advice as a statute. C. let convergence programmes waive PESA/FRA. D. combine transparent reporting, land/CFR records, council capacity, precise participation and accessible remedies.

Answer: D.

Explanation: [ANALYSIS] Reform must connect legal authority to usable, reviewable community power.

Remedial MCQs - strict continuation A -> B -> C -> D rotation

RM1. President-Governor reversal

Which matching is correct?

A. President-declares Scheduled Area; Governor-organises Sixth Schedule districts/regions. B. Governor-declares Scheduled Area; President-organises ADCs. C. TAC-declares ST list; Parliament-declares Scheduled Area. D. Gram Sabha-declares tribal area; Governor-declares ST list.

Answer: A.

Explanation: [FACT] Keep area declaration, ST specification and Sixth Schedule organisation on separate tracks.

RM2. Assent reversal

Which pairing is accurate?

A. Fifth Schedule regulation-Governor assent; Sixth Schedule law-President assent. B. Fifth Schedule regulation-President assent; Sixth Schedule council law-Governor assent. C. both-President assent. D. neither requires assent.

Answer: B.

Explanation: [FACT] This reversal frequently decides a statement question.

RM3. TAC versus ADC

Which institutional comparison is correct?

A. Both are advisory. B. Both levy taxes. C. TAC advises; ADC can legislate, administer, adjudicate specified disputes and levy specified taxes. D. TAC is more autonomous than an ADC.

Answer: C.

Explanation: [FACT] Fifth and Sixth Schedule bodies are not interchangeable.

RM4. State executive power

Scheduling an area under the Fifth Schedule:

A. ends the State's executive power. B. creates a local sovereign government. C. triggers President's Rule. D. retains State administration within the Schedule's reporting and direction structure.

Answer: D.

Explanation: [FACT] This directly remedies the 2025 PYQ trap.

RM5. PESA scope

Which statement is correct?

A. PESA modifies Part IX for Fifth Schedule Scheduled Areas. B. PESA creates Sixth Schedule councils. C. PESA applies only to one State. D. PESA replaces FRA.

Answer: A.

Explanation: [FACT] The statutes complement each other but have different objects.

RM6. PESA verb

Before acquisition and R&R in a Scheduled Area, the central PESA text uses:

A. approval. B. consultation. C. ownership. D. adjudication.

Answer: B.

Explanation: [FACT] Minor-mineral decisions use a different "recommendation" rule.

RM7. Forest rights

Which institution initiates FRA claims?

A. TAC. B. MoEFCC. C. Gram Sabha. D. ADC in every State.

Answer: C.

Explanation: [FACT] The process then moves through Sub-Divisional and District Level Committees.

RM8. Niyamgiri limit

Which statement must be rejected?

A. FRA-linked religious claims were considered. B. Gram Sabha decisions informed the clearance process. C. MoEF retained the final Stage-II decision. D. The judgment created an unlimited Gram Sabha veto over every Indian project.

Answer: D.

Explanation: [LIMIT] The holding was project-, statute- and claim-specific.

RM9. Council forest power

Which is correct?

A. Paragraph 3 includes management of forests other than reserved forests. B. ADCs control every national park automatically. C. FRA is inapplicable in the North-East. D. Council law requires President's assent.

Answer: A.

Explanation: [FACT] Reserved-forest exclusion and Governor assent are the key qualifiers.

RM10. Article 244A

Article 244A is specifically associated with:

A. PESA rules in Odisha. B. an autonomous-State route within Assam. C. declaration of Scheduled Tribes. D. Fifth Schedule regulations nationwide.

Answer: B.

Explanation: [FACT] It should not be confused with an existing ADC.

RM11. Current law control

Which is the safest dated statement?

A. Every PESA State has fully implemented every section. B. Odisha has a separately listed official rule instrument. C. The MoPR listing shows nine rule regimes and the implementation gap remains a separate question. D. Jharkhand has no PESA rules.

Answer: C.

Explanation: [CURRENT] Jharkhand Rules 2025 appear in the official list; Odisha does not.

RM12. Answer-writing sequence

The strongest mining-rights paragraph is:

A. slogan -> unsourced statistic -> conclusion. B. case name -> universal claim. C. Article list without facts. D. claim -> Fifth/PESA/FRA/State-law evidence -> project mechanism -> analysis -> case-specific qualification.

Answer: D.

Explanation: [ANALYSIS] This sequence preserves legal accuracy and examiner-visible reasoning.

Original solved Mains practice

M1. Explain the constitutional rationale for separate administration of Scheduled and tribal areas. (10 marks, 150 words)

Model solution

Thesis: [ANALYSIS] The Fifth and Sixth Schedules use differentiated governance to achieve substantive equality where historical alienation, customary institutions, geographic isolation and land-resource dependence make ordinary administration inadequate.

Historical basis: [FACT] Colonial excluded-area administration concentrated executive control. Constituent Assembly subcommittees led by A.V. Thakkar and Gopinath Bordoloi redesigned differentiation around protection and self-government. [ANALYSIS] The Constitution therefore retained special territory while changing its democratic purpose.

Two models: [FACT] Article 244(1) applies the Fifth Schedule: Presidential declaration, Governor reporting/regulations, Union directions and TAC advice. Article 244(2) applies the Sixth: elected councils with specified legislative, executive, judicial and fiscal powers. [ANALYSIS] The first is guardian-centred protection; the second is territorial autonomy.

Rights layer: [FACT] PESA 1996 and FRA 2006 add Gram Sabha participation and forest-right recognition. [ANALYSIS] They convert communities from administrative objects into rights-bearing participants.

Qualification: [LIMIT] Special administration can become paternalistic or opaque; custom also remains subject to Fundamental Rights.

Verdict: Differentiation is legitimate when it secures land, culture, voice and accountable self-rule, not when it creates permanent executive tutelage.

Why this earns marks: It answers "why", names the constitutional models, supplies history and statutes, and ends with a qualified normative test.

M2. "The Fifth Schedule is constitutionally powerful but institutionally under-activated."

Examine. (10 marks, 150 words)

Model solution

Thesis: [FACT] The Fifth Schedule supplies strong supervisory and protective tools; [ANALYSIS] their impact depends on transparent use by the Governor, State and Union and meaningful community participation.

Power: The President declares/changes Scheduled Areas. The Governor reports annually, may adapt parliamentary/State laws and make peace-and-good-government regulations on land transfer, allotment and money-lending, subject to TAC consultation and presidential assent. Union directions and Articles 275(1)/339 add fiscal and welfare supervision.

Under-activation: [ANALYSIS] TAC agenda depends on gubernatorial reference; reports lack a constitutionally mandated public template; protective regulations and PESA conformity may lag; State revenue/mining priorities can conflict with anti-alienation goals.

Named evidence: [FACT] PESA section 4 creates precise Gram Sabha/Panchayat powers, while the official 2026 rule listing still shows Odisha without a separately listed rules instrument. [ANALYSIS] Enactment has not ensured uniform implementation.

Qualification: [LIMIT] The Governor's powers should not be misstated as unreviewable personal discretion.

Verdict: Activation requires public reporting, reasoned TAC follow-up, cross-law conformity, records and enforceable remedies.

Why this earns marks: It balances text and performance, uses exact institutions and a dated official implementation control.

M3. Discuss the legislative, executive, judicial and fiscal powers of Sixth Schedule councils and their constitutional limits. (15 marks, 250 words)

Model solution

Thesis: [FACT] Sixth Schedule councils are constitutionally protected territorial governments with multi-functional autonomy; [ANALYSIS] they remain subject-specific bodies within State and Union constitutional authority, not sovereign legislatures.

Legislative: Paragraph 3 covers land use, non-reserved forests, agricultural water, shifting cultivation, village administration, chiefs/headmen, inheritance, marriage/divorce and social customs. Laws require Governor assent. Assam paragraphs 3A/3B enlarge powers for specified councils.

Executive: Paragraph 6 permits management of primary schools, dispensaries, markets, ferries, fisheries, roads and entrusted welfare/planning functions. [ANALYSIS] Functional autonomy is strongest where staff and funds follow the subject.

Judicial: Paragraph 4 allows village/council courts and appeals for specified disputes involving tribal parties. [LIMIT] High Courts and the ordinary justice system retain their constitutional place.

Fiscal: Councils assess land revenue, levy specified taxes and maintain District/Regional Funds; paragraph 9 provides a mineral-royalty share. Article 275(1) supports capacity. [LIMIT] Revenue sharing is neither mineral ownership nor fiscal sovereignty.

Checks: Governor assent/approval, inquiry, suspension and specified dissolution/supersession powers; State-specific paragraphs govern application of laws; Parliament may amend the Schedule.

Named examples: [CURRENT] Assam's BTC has a special 46-member design; Meghalaya's three ADCs route instruments through State scrutiny to the Governor.

Verdict: The Schedule creates meaningful autonomy when constitutional powers, administrative transfer and democratic accountability operate together.

Why this earns marks: It organises the answer by four power types, names paragraphs/examples and repeatedly identifies the limits.

M4. Compare the Fifth and Sixth Schedules as competing models of tribal governance. (15 marks, 250 words)

Model solution

Thesis: [ANALYSIS] The Schedules answer the same problem through different institutional theories: the Fifth relies on protective supervision; the Sixth constitutionalises elected territorial self-government.

Dimension	Fifth	Sixth
territory	Presidential Scheduled Area Orders in 10 States	tribal areas in four North-Eastern States
institution	advisory TAC	elected District/Regional Councils
law	Governor adapts laws/makes regulations; President assents	council laws on specified subjects; Governor assents
administration	State continues under reporting/Union directions	councils manage specified services within State authority
justice/finance	no Schedule-created TAC courts/taxes	specified courts, land revenue and taxes
local participation	PESA extends modified Part IX	PESA does not apply

Analysis: [FACT] The Fifth's land-transfer and money-lending regulation powers can be strong, and PESA/FRA deepen community agency. Yet TAC advice and gubernatorial initiative may remain dormant. The Sixth's elected councils provide continuous local law-making and finance, but assent delays, limited subjects, State control and intra-area representation disputes constrain autonomy.

Named evidence: *Samatha* illustrates protective land law in the Fifth context; BTC's special design shows adaptable Sixth Schedule autonomy.

Qualification: [LIMIT] "Sixth is always better" ignores context, council accountability and non-Sixth alternatives such as Article 371 or strengthened hill councils.

Verdict: The best reform imports the Sixth's agency into Fifth Schedule practice without treating either model as institutionally complete.

Why this earns marks: It compares on identical axes, uses evidence and avoids a simplistic hierarchy.

M5. PESA is a calibrated code of community power, not a universal Gram Sabha veto. Discuss. (15 marks, 250 words)

Model solution

Thesis: [FACT] PESA section 4 assigns different powers to the Gram Sabha and Panchayats according to the decision; [ANALYSIS] its strength lies in legal precision, not a single maximalist verb.

Approval: Gram Sabha approves village-level social/economic plans, programmes and projects before implementation and identifies beneficiaries.

Certification: Village Panchayat obtains Gram Sabha certification of fund utilisation.

Consultation: Gram Sabha or appropriate Panchayat is consulted before land acquisition and R&R in Scheduled Areas. [LIMIT] Consultation is not statutory universal consent.

Mandatory recommendation: Prior recommendation is required for specified prospecting licences/mining leases for minor minerals and for auction concessions, with the statutory holder varying by clause.

Substantive endowment: State law must endow ownership of minor forest produce, village-market control, regulation of money-lending/intoxicants, land-alienation prevention/restoration, local-plan/resource control and social-sector oversight.

Named evidence: [FACT] PESA's habitation-based village and cultural-resource safeguard recognise living customary institutions. [CURRENT] Official MoPR material lists nine State rule regimes; notification does not prove cross-sector compliance.

Critical gap: large Gram Panchayat boundaries, weak records, sectoral-law inconsistency and formal meetings can dilute powers.

Verdict: Courts and administrators should enforce the exact statutory verb at each project stage while States strengthen Gram Sabha information, inclusion and remedy.

Why this earns marks: It directly proves the proposition with section-specific verbs, then adds implementation and qualification.

M6. Analyse how the Fifth Schedule, PESA, FRA and judicial decisions regulate land and mining conflicts in tribal areas. (15 marks, 250 words)

Model solution

Thesis: [ANALYSIS] Tribal land/mining governance is cumulative: no one clearance or consultation substitutes for constitutional regulation, community power, forest-right recognition and sectoral law.

Fifth Schedule: Paragraph 5 permits regulations restricting tribal land transfer, allotment and money-lending. [ANALYSIS] It supplies the anti-alienation constitutional base, but the operative State regulation matters.

PESA: section 4 requires consultation for acquisition/R&R, mandatory prior recommendation for specified minor-mineral decisions and powers to prevent/restore alienated land. [LIMIT] Major minerals and all projects cannot be swept into one veto claim.

FRA: Gram Sabha initiates individual/community/CFR claims; section 5 adds conservation duties. [ANALYSIS] A project must first know whose rights and cultural relationships are affected.

Cases: [FACT] *Samatha* invalidated the impugned Andhra Pradesh Scheduled-Area mining leases under the State land-transfer regulation; its nationwide reach must be qualified. [FACT] *Orissa Mining Corporation* required Gram Sabha determination of FRA-linked cultural/religious claims, while MoEF retained the final Stage-II clearance decision.

Conflict mechanism: insecure records, debt, acquisition and forest diversion can combine to dispossess communities even where one procedure is formally completed.

Verdict: lawful development requires sequenced rights recognition, exact PESA compliance, environmental appraisal, reasoned alternatives and enforceable restoration/R&R.

Why this earns marks: It integrates four legal layers, uses two accurately bounded cases and explains the causal mechanism of dispossession.

M7. Design an accountability reform for Fifth and Sixth Schedule institutions. (20 marks, 250 words)

Model solution

Thesis: [ANALYSIS] Reform should preserve constitutional asymmetry while making every exercise or non-exercise of power visible, reasoned, participatory and remediable.

1. Territorial accuracy: publish current Presidential Orders, habitation maps and council boundaries in accessible local formats; distinguish whole districts from partial coverage.

2. Governor accountability: standardise annual Fifth Schedule reports around land alienation, PESA, FRA, services and outcomes; publish them with justified confidentiality exceptions. Require reasoned disposal of TAC advice.

3. TAC renewal: fixed meeting calendar, community/expert evidence, public agendas and action-taken statements. [LIMIT] retain its advisory constitutional character.

4. PESA implementation: harmonise Panchayat, excise, market, money-lending, land and minor-mineral laws; notify the remaining rules gap; support habitation-level Gram Sabhas and inclusive meetings.

5. Sixth Schedule capacity: activity, staff and fund maps; assent timelines and reasons; independent audit; transparent council law databases; strengthen village/council-court training and appeal records.

6. Land/FRA infrastructure: geo-referenced but privacy-sensitive land/CFR records, legal aid and restoration tracking.

7. Project sequencing: rights determination -> statutory consultation/recommendation -> environmental/social appraisal -> reasoned decision -> monitored R&R/restoration.

8. Intergovernmental review: use Articles 275/339 and State departments for capacity and convergence, not command substitution.

Qualification: digitisation can exclude remote communities; custom cannot override equality and dignity.

Verdict: accountability should align who decides, who implements, who records reasons and who can obtain a remedy.

Why this earns marks: It offers a sequenced institution-specific design, protects autonomy and attaches qualifications to each reform logic.

M8. Should Sixth Schedule-style autonomy be extended to Ladakh or other tribal regions? Critically examine. (20 marks, 250 words)

Model solution

Thesis: [ANALYSIS] Extension should follow institutional fit, not population alone: the issue is which legal form best protects land, culture, representation and accountable development within the relevant State/UT structure.

Case for extension: elected territorial councils can legislate on land/custom, manage services, raise specified revenue and provide continuous local voice. [CURRENT] Ladakh's official dialogue concerns land, culture, employment and empowerment of hill councils; no Sixth Schedule status has been enacted.

Why the model attracts demands: [FACT] Sixth Schedule councils are stronger than a Fifth Schedule TAC and ordinary administrative councils because they combine legislative, executive, judicial and fiscal powers.

Limits: the Schedule presently operates in four named States; council boundaries can create minority-insider disputes; gubernatorial assent, weak staff/funds and State overlap can reduce promised autonomy. Ladakh is a UT with existing hill councils and strategic/ecological constraints, so transplantation requires careful legal design.

Alternatives/complements: an Article 371-type provision, strengthened elected hill councils, land/employment legislation, cultural-language guarantees, legislative representation or a tailored parliamentary framework may better match some regions.

Decision test: territorial compactness; customary institutions; consent of affected groups; minority safeguards; fiscal viability; relation with State/UT legislature; judicial and audit accountability.

Qualification: [LIMIT] high ST population is evidence of need, not a self-executing constitutional entitlement to one model.

Verdict: consider Sixth Schedule extension where territorial self-government is the proportional solution, but choose through transparent consultation and enacted constitutional design rather than slogan or analogy.

Why this earns marks: It uses current Ladakh control, compares institutional benefits and costs, offers alternatives and answers "should" with a conditional test.